

1.

CASE #	CASE NAME	HEARING NAME
CVME2510697	COX VS TULIP CREMATION	MOTION TO COMPEL

Tentative Ruling: Set an in-camera review on October 20, 2026 at 10:00 a.m. The Bureau is ordered to provide the non-disclosed documents covered by the subpoena to the court for in-camera inspection and determination as to whether any of the documents, or portions thereof, should be compelled to be produced to Plaintiffs.

Timeliness of the Motion: In compliance with CCP §2020.430(b), the deposition subpoena required Bureau to produce business records to the deposition officer at Titan Legal Services, Inc., 2050 W. 190th Street, Suite 200, Torrance, CA 90504. The subpoena also instructed Bureau not to release the records to the deposition officer before the date and time specified in the subpoena (June 5, 2026, at 10:00 a.m.). On June 1, 2026, Bureau submitted a letter to Titan Legal objecting to the entire subpoena, citing official information and deliberative process privileges. CCP §2020.440 states that "[p]romptly on or after the deposition date and after the receipt or the making of a copy of business records under this article, the deposition officer shall provide that copy to the party at whose instance the deposition subpoena was served...." Because the deposition officer cannot release the records until the specified date, that date is when the objections should be considered served on Plaintiffs. Accordingly, since the date of service was June 5, 2026, the motion filed on August 4, 2026, was timely.

Evidence Code section 1040 grants the Bureau the privilege to refuse disclosure of information acquired in confidence if preserving confidentiality outweighs the need for disclosure. (Evid. Code §1040(b)(2); *Sander v. State Bar of California* (2013) 58 Cal.4th 300, 325.) This conditional privilege applies only if a court finds that disclosure would be contrary to the public interest. (*Shepherd v. Superior Court* (1976) 17 Cal.3d 107, 123.) Only information acquired in confidence is protected under the statute's plain language.

Given the Bureau's role in protecting the public interest, information provided in confidence is subject to the official information privilege. Plaintiffs have not shown that their need for confidential communications outweighs the public's interest in maintaining confidentiality. Plaintiffs' only articulated need concerns the Bureau's knowledge of Defendant Tulip's activities—matters they can investigate through discovery and their own efforts. The subpoena, however, sought the entire case file, which necessarily includes more than confidential communications.

Regarding the deliberative process privilege, Plaintiffs sought the entire case file, which includes documents related to the Bureau's deliberations. During the meet and confer process, the Bureau provided two warning letters to licensees and a letter to the complainant, but claimed privilege over the remaining documents: (1) the complaint, (2) the investigation report, and (3) the internal case recommendation form. Plaintiffs argue they are entitled to their own complaint and supporting materials—which cannot reasonably be withheld from them—and seek final enforcement records, factual communications with Tulip, and materials Tulip submitted to the Bureau. The Bureau has not explained why these categories are categorically privileged or why non-privileged information cannot be redacted. Plaintiffs further contend that the investigation report likely contains both deliberative recommendations and factual content, such as dates, reviewed documents, statements, and the factual basis for findings. Plaintiffs assert the Bureau

should be required to produce segregable factual portions, submit disputed sections for in camera review, or produce documents under a protective order.

Plaintiffs also argue that the internal case recommendation form may contain deliberative material, but cannot assess its content because the Bureau has offered only a blanket privilege objection under Evidence Code section 1040(b), without substantiation. Plaintiffs primarily request in camera review so the Court can determine if the official information privilege applies and whether the document contains segregable factual information. They also suggest the Court could excise protected or unrelated material rather than order wholesale nondisclosure.

The Court does not know the contents of the Complaint, Investigation Report, or Recommendation Form, but must determine whether these documents are privileged. The only way to make this determination is through in camera inspection. Accordingly, the Court orders the Bureau to submit these documents for an in-camera review.

2.

CASE #	CASE NAME	HEARING NAME
CVME2602727	ALSILAWI VS BMW OF NORTH AMERICA, LLC	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: Grant the motion for JOP as to both the first and second causes of action with 20 days leave to amend. Grant the request for judicial notice as to the RISC. (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 956, f 6; *Salvaty v. Falcon Cable TV* (1985) 165 Cal.App.3d 798, 800, f. 1.) The Complaint fails to allege that the vehicle is a “new motor vehicle”, or a used vehicle alleging that BMW was the retail seller under CCP 1795.5.